

Territorial Army Rules, 1948

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[1710.](#)

[No. 252 A, dated the 12th February, 1949. - In exercise of the powers conferred by Section 14 of the Territorial Army Act, 1948 \(](#)

[56 of 1948](#)

[\), the Central Government is pleased to make the following rules :-](#)

[1.](#)

[Short title.](#)

[- These rules may be called the Territorial Army Rules, 1948. They extend to the whole of India.](#)

[2.](#)

Definitions.

- In these rules, unless there is anything repugnant in the subject or context, -

(a)

"the Act" means the Territorial Army Act, 1948;

(b)

"Form" means a Form as set out in Schedule 1;

(c)

"schedule" means a schedule to these rules;

(d)

"section" means a section of the Act;

(e)

"training year" means a period of twelve months beginning on the first day of April and ending on the thirty-first day of March;

(f)

[the expression "Officer Commanding the Area" means the General or other officer commanding an Area or a Independent Sub-Area, or an equivalent commander within the limits of whose command the headquarters of a unit constituted under the Act is situated or such other officer as may be specified by the Central Government in this behalf;]

(g)

["Provincial Unit" means a unit having training annually in camp;

(h)

"Urban Unit" means a unit having training through less out the year on the weekly drill system and at an annual camp.]

3.

Constitution and zones.

(a)

Units of the Territorial Army shall be raised on a Zonal basis.

(b)

Zones shall be constituted and defined by the Central Government by notification in the Official Gazette.

(c)

The Central Government may, by notification in the Official Gazette constitute for any zone, one or more provincial units or one or more urban units of the Territorial Army.

(d)

An urban unit or a provincial unit of the Territorial Army, may be recruited from persons residing in or near such town or such rural areas as may be specified in this behalf by the Central Government.

[Provided that the Central Government may, whenever it considers it necessary, direct that recruitment to Territorial Army units may be made from persons (being Citizen of India) irrespective of their place of residence.]

Part I ? Enrolment

4.

Qualifications for enrolment.

- No person shall be eligible for enrolment as a member of the Territorial Army-

(a)

unless he is of good character;

(b)

unless he has attained the age of 18 years and has not attained the age of -

(i)

40 years in the case of enrolment in the [Railway or] [Port, Dock, Inland water Transport or] Electrical and Mechanical Engineer units;

["(ia) The Central Government may relax the condition prescribed by clause (c) in respect of any or all units of the Territorial Army".]

(ii)

[45 years in the case of enrolment in the Posts and Telegraphs units;]

(iii)

[45 years in the case of women employees of Posts and Telegraphs Department enrolled in the Posts and Telegraphs units;] and

(iv)

35 years in all other cases;

(c)

unless he is a resident of the zone for which the unit in which enrolment has been applied for is constituted;

(d)

unless he satisfies such standards of physical fitness in height, chest measurement and other respects as may be specified by the Ministry of Defence, Government of India;

(e)

if he is in the service of the Central or a State Government unless he has obtained from that Government permission for enrolment and also a certificate to the effect that his services will forthwith be made available for service in the Territorial Army, whenever required;

(f)

if he belongs to any Reserve Force;

(g)

if he has any reserve liability;

(h)

if he has at any time been convicted of an offence involving moral turpitude and a sentence other than one of fine or of imprisonment in default of payment of fine has been passed in respect of such offence, such sentence not having been subsequently reversed or remitted or the offence pardoned;

(i)

if he has been ordered to give security for good behaviour under the Code of Criminal Procedure, 1898;

(j)

if he has been dismissed from the Territorial Army or the Auxiliary Forces (India), or the Indian Territorial Force, Militia or the Scouts, Regular Army or the Navy or the Air Force;

(k)

if he has more than one wife living :

Provided that -

(i)

The Chief of the Army Staff, in any case, and any authority empowered by the Chief of the Army Staff in this behalf, in such cases and to such extent as the Chief of the Army Staff may specify, may relax the age limits prescribed by clause

(b);

(ia)

[The Central Government may relax the condition specified in clause (c) in respect of any unit and specify the zones or areas from which recruitment to that unit may be made;]

(ii)

a person who is ineligible by virtue of the provisions in clause (h) or (i) may be enrolled if he produces a certificate that he is fit to be enrolled from the Government of the State of which he is a resident;

(iii)

the Central Government may, for special reasons, exempt any person from the operation of clause (k).

5.

Application for enrolment.

(1)

A person desirous of being enrolled shall apply to the Officer Commanding a unit for service in which he desires to be enrolled or to an officer who is a recruiting officer or assistant recruiting officer for the purpose of the enrolment of persons under the Army Act, 1950, or to such other officer as may be appointed by the Central Government in this behalf.

(2)

The officer to whom an application under sub-rule (i) is made shall cause the applicant to fill up and sign in his presence a statement set forth in Form I.

6.

Verification.

- The officer aforesaid -

(a)

shall satisfy himself in the manner laid down by the Central Government that the application is in order and that the applicant is eligible for enrolment under rule 4, and

(b)

may make such further inquiry as he thinks necessary regarding the suitability of the applicant for enrolment in the unit.

7.

Medical examination.

- Where such officer is satisfied that the application is in order, that the applicant fulfils the conditions of enrolment, that he is suitable for enrolment in the unit in which he desires to be enrolled, and that a vacancy exists in that unit, he shall cause the applicant to be served with a notice requiring him to present himself for medical examination at a time and place to be specified in the notice.

8.

Rejection.

- Where such officer is satisfied that the application is not in order or that the applicant does not fulfil the conditions of enrolment or that he is not suitable to be enrolled in the unit of his choice or if the applicant fails to comply with the notice served on him under rule 7 or is found to be medically unfit for service in the Territorial Army, such officer shall reject the application and shall inform the applicant accordingly. Such applicant shall, however, have a right of appeal against the decision of the officer who rejected his application to the Commander of the Sub-Area in which the unit of his choice is located.

9.

Method of enrolment.

(a)

If the applicant is accepted for enrolment, he shall be required to sign a declaration at the foot of Form I.

(b)

Where the officer referred to in sub-rule (1) of rule 5 is satisfied that the applicant understands the questions put to him, and consents to the conditions of service, he shall sign a certificate to that effect on the said Form, and the applicant shall thereupon be deemed to be enrolled.

10.

Attestation.

(a)

Every person enrolled shall be attested by his Commanding Officer, and for this purpose an oath or affirmation shall be administered to him in one of the forms specified in Form II, or in such other form to the same purport as the commanding Officer deems to be in accordance with the religion of the person to be attested, or otherwise binding on his conscience.

(b)

An entry of the fact that a person enrolled has taken the oath or affirmation directed by this rule shall be endorsed on the enrolment form signed by him and shall be authenticated by the signature of the Commanding Officer.

11.

Period of enrolment.

- Subject to the provisions of Part III of these rules, every person accepted for enrolment shall be enrolled for a period of seven years in the Territorial Army and eight years in the Territorial Army Reserve from the date of his enrolment under rule 9. The service in the Territorial Army may be extended by two years at a time or such longer period as may be specified in this behalf by the Director, Territorial Army, so as to complete a total period of fifteen years' service in the Territorial Army :

Provided that persons accepted for enrolment as non-combatants shall be enrolled for the same period for which non-combatants are enrolled in the Regular Army.

Part II ? Appointment And Transfer

12.

Appointment.

(a)

A person enrolled in the Territorial Army shall be appointed by the officer who enrolled him to a unit of the Territorial Army.

[* * * *]

(b)

Rules for appointment of officers of the Territorial Army shall be the same as for the Regular Army.

13.

Transfer and attachment.

(1)

Any person appointed to a unit under rule 12 may be transferred by the prescribed authority whether on disbandment of the unit or otherwise to another unit of Territorial Army.

(2)

Nothing contained in sub-rule (1) shall be deemed to authorise the transfer without his own consent of any person appointed to a unit except when such transfer is deemed necessary during a period of emergency declared in this behalf in a notification published in the Official Gazette by the Central Government or such transfer is from one provincial unit to another similar provincial unit within the same zone or from one urban unit to another similar urban unit in the same town.

(3)

A person who desires to be transferred to another unit shall submit his application in writing to his Commanding Officer and in such application shall state reasons for desiring transfer and the unit to which he desires to be transferred. Thereupon the transfer shall be effected in the case of an enrolled person by mutual agreement between his commanding Officer and the Commanding Officer of the unit to which he desires to be transferred, and in the case of an officer by order of the prescribed authority.

(4)

When a person belonging to a unit ceases to reside in the zone for which such unit is constituted he may be compulsorily transferred by the prescribed authority to a unit constituted for the zone in which he for the time being resides provided that he can be absorbed in such unit.

(5)

Any person belonging to a unit may be attached by the prescribed authority at his own request or otherwise to any unit of the Territorial Army or to any unit of the Regular Army.

(6)

any person belonging to a unit who leaves his place of residence for the time being and thereby leaves the zone in which the unit wherein he is serving is constituted shall, if he does not intend to return to that zone, notify the prescribed authority in that zone of his change of residence.

(7)

Where a person mentioned in sub-rule (6) intended to return but did not in fact return to his zone within three months of his departure, he shall immediately on the expiry of the said period send intimation in writing to the prescribed authority.

Explanation. - In this rule, the expression "prescribed authority" means :-

(1)

in the case of an enrolled person the Officer commanding the Sub-Area/Div./Independent Sub-Area/Indep. Bde. Gp./Indep. Bde. [or the Director, Territorial Army] as the case may be within which the unit of the person is constituted;

(2)

[in the case of an Officer, the Director, Territorial Army] [or the Director of signals]

(3)

[* * * *]

Part III ? 14. Discharge.

(a)

Every person enrolled shall, on becoming entitlea to receive his discharge under the Act or these rules, be so discharged with all convenient speed.

(b)

Any such person may be discharged as hereinafter provided on any of the following grounds, namely :-

(i)
that he has been convicted by a criminal court of an offence punishable with transportation or imprisonment.

(ii)
That he has in filling up any form prescribed by these rules or otherwise for the purpose of obtaining his enrolment made any statement which was false and which he knew to be false or did not believe to be true.

(iii)
That his service are no longer required.

(iv)
That he is medically unfit for further service.

(c)
Discharge, Dismissal, Removal, Retirement-Officers. - Rules for the discharge, dismissal, removal and retirement of the officers of the Territorial Army shall be the same as for the Regular Army provided that the retiring age for the officers of the Territorial Army shall be as specified in the table below :-

Table

Rank

Retiring

age

Above

Lieut.-Colonel

Such age

as may from time to time be specified for the Regular Army.

Lieut.-Colonel

52

years.

57 years

in the case of A.M.C.

Majors

and below

50

years.

52 years

in the case of A.M.C.

Subedar-major/Risaldar-Major

52 years

or on completion of 32 years of service or for a period of service specified in the Regulations for the Army in India for his appointment, whichever event may occur first.

Subedar/Risaldar/Jamadar

Head Clerk

52 years

or on completion of 28 years of service, whichever event occurs first.

Jamadar

52 years

or on completion of 24 years of service, whichever event occurs first.

15.

(1)
The authority competent to authorise the discharge of an enrolled person under the provisions specified in column I of the annexed table shall, subject to the provisions of sub-rule (2), be the authority specified in the corresponding entry in column 2 thereof.

Table

Provision

under which discharge authorised

Authority

competent to authorise discharge of enrolled person

1

2

Sub-rule

(a) of rule 14

The

Commanding Officer.

Clause

(i) of sub-rule (b) of rule 14

Sub-Area

Commander.

Clause

(ii) of sub-rule (b) of rule 14

Ditto.

Clause

(iii) of sub-rule (b) of rule 14

At any

time during the enrolled person's first two years of training if he is unlikely to become an efficient soldier, or is untraceable, or does not report for training for a period of one year or in the case of an unattested recruit at his own request, the Commanding Officer; in all other cases, the Sub-Area Commander.

Clause

(iv) of sub-rule (b) or rule 14

The

Commanding Officer.

(1A)

Where a discharge is authorised under the provisions of clauses (ii) and (iii) of sub-rule (b) of rule 14, the competent authority before authorizing the discharge shall, if the circumstances of the case permit, give the enrolled person an opportunity to show cause against the discharge, unless such discharge is at the request of the enrolled person.

(2)

In a case in which the authority competent to authorise discharge under sub-rule (1) is the Commanding Officer, the discharge may also be authorised by the Officer Commanding the Sub-Area, the Area General Officer Commanding-in-Chief a Command, the Chief of the Army Staff or the Central Government; and in a case in which the authority competent to authorize discharge thereunder is the Officer commanding the Sub-Area, the discharge may also be authorised by the Officer Commanding the Area, the General Officer Commanding-in-Chief the Command, the Chief of the Army Staff or the Central Government.

(3)

Any enrolled person discharged under Sub-rule (1) or sub-rule (2) shall have a right of appeal against the decision of the authority which authorised his discharge to the next higher authority provided that there shall be no appeal where the order of discharge is made by the Central Government.

(4)

A discharge duly authorised under this rule shall be carried out by the Commanding Officer with all convenient speed.

16.

Discharge on application.

(1)

Any enrolled person not entitled to his discharge under the Act or these rules who is desirous of being discharged before the expiration of the period for which he was enrolled, shall apply in writing stating the reason for his application to the

Officer Commanding the unit to which he is for the time being appointed.

(2)

The Officer Commanding the unit shall, on receipt of such an application, forward the same to the S 6b-Area Commander [or an equivalent or higher commander] who may in his discretion authorise the discharge of such applicant

17.

Discharge certificate.

- Every enrolled person who is discharged from the Territorial Army shall be furnished by his Commanding Officer with a certificate similar to that referred to in section 23 of the Army Act, 1950.

Part IV ? Training

18.

Military training.

- Military training for Territorial Army Units shall consist of -

(a)

Recruit training,

(b)

Annual training,

(bb)

[Post-Commission training;]

(c)

Voluntary training, and

(d)

Service on the permanent staff.

19.

Recruit training.

(a)

Every person appointed to a provincial unit shall be liable, for the purpose of undergoing recruit training, to be embodied, under the orders of the Officer Commanding the Area in which the unit is located, for a period or periods not exceeding in the aggregate 30 days in any one year.

(b)

Every member of an urban units other than Railway Engineers Units or Signal (Posts and Telegraphs) Units, shall be liable to undergo recruit training for a period of 32 days, during which period he may be embodied for not less than four consecutive days. This embodied period may, however, be extended up to a maximum of fourteen consecutive days in all, provided that, in so far as the additional period beyond the initial period of four days is concerned, the individual volunteers and obtains the written consent of his employer, if any. The annual musketry course as laid down in the Regulations may be fired at any time during the period the person is embodied.

(c)

Every member of a Railway Engineers unit or Signal (Posts and Telegraphs) unit, shall be liable, for the purpose of undergoing recruit training, to be embodied under the orders of the Officer Commanding the Area in which the unit is located, for a period of 30 days during the first year of service.

(d)

Every member of an urban unit shall be liable for the purpose of firing the annual musketry course to be embodied for one day in the year in addition to the period prescribed in clause W. Such periods of embodiment shall only take place on Sundays or other recognised holidays.

(e)

The Officer Commanding any unit may exempt either wholly or in part from liability to undergo recruit training any person who has in his opinion undergone adequate military training in the Regular Forces or otherwise.

Explanation. - For the purposes of clause (b), a day shall consist of 4 hours of actual military drill or instruction, and may be made up of fractions of a day not more than 4 in number.

20.

Annual training.

(1)

Every person who has undergone the recruit training required by rule 19, or has been exempted from undergoing such training shall be liable to undergo annual training as hereinafter provided, namely -

(a)

Every such person who is appointed to a provincial unit shall be liable to be embodied, under the orders of the Officer Commanding the Area in which the unit is located, for annual training for a period not exceeding two calendar months in each training year, whether or not such person has been embodied for recruit training in that year.

(b)

[Every such person who is appointed to an urban unit other than Railway Engineers unit or Signal (Posts and Telegraphs) unit, shall be liable, to undergo annual training for a period of not less than 36 days, and not more than 60 days, subject to the provision that he shall attend minimum of three days training during every month for 9 months in the year excluding the days spent in camp. During the aforesaid period of training, he may, under orders of the Officer Commanding the Area in which the unit is located, be embodied for an annual camp of not less than eight consecutive days. The period spent in the camp may, however, be extended up to a maximum of fourteen consecutive days in all, provided the individual volunteers and obtains the written consent of his employer, if any, for the period which is in excess of the said eight days.]

Explanation. - For the purposes of clause (b) a day shall consist of 4 hours of actual military drill or instruction, and may be made up of fractions of a day not more than 4 in number.

(c)

Every member of a Railway Engineers unit or Signal (Posts and Telegraphs) unit shall be liable for the purpose of undergoing annual training, to be embodied under the orders of the Officer Commanding the Area in which the unit is located, for a period of 30 days in a year during the second and subsequent years of service.

(d)

[Every such person who is appointed to an urban unit shall be liable, for the purpose of firing the annual musketry course, to be embodied for a period of one day in the year in addition to the period prescribed in clause W. the period of one day of embodiment for the purpose of firing annual musketry course may be increased to twodays in cases where the training could not be completed in one day provided that the increased period of one day is within the maximum period of annual training laid down in clause W. Such period of embodiment shall only take place on Sundays or recognised holidays.]

(e)

Junior Commissioned Officers and other ranks (other than, permanent staff) up to five per cent, of the authorised establishment of the unit, may be employed at the discretion of the Area or Independent Sub-Area Commander for a period of seven days before training commences and for a period of four days after training ends, for the purpose of pitching and striking camp and issuing and taking into stores clothing and equipment etc.

(f)

Every such person who is appointed to an urban unit may, under the orders of the Area/Independent Sub-Area Commander, be embodied for a period not exceeding seven days for the purpose of passing prescribed trade test, provided the individual volunteers and obtains the written consent of his employer, if any. The period of embodiment shall count against the extended period of annual camp as prescribed in clause W.

(g)

Every officer commissioned in the Territorial Army shall, for the purpose of appearing at the prescribed test in Hindi, be embodied for the period of actual duration of the test. Such period of embodiment shall count towards the period prescribed for annual training.

(h)

[Every such person may, under the orders of the of the Officer Commanding the Area, be embodied with the consent of his employer, if any, for the purpose of participating in a ceremonial parade for a period up to four consecutive days. This period of embodiment shall be in addition to the period of annual training prescribed in clauses (a), (b) and (c).

(i)

A person, while embodied for annual training under clause (a), (b), or (c) may be ordered to participate in a ceremonial parade for a period up to four consecutive days, in which case, the period of annual training for which such person was embodied shall be deemed to have been extended by the number of days spent by him in training for and participating in such ceremonial parade.]

(2)

The Officer Commanding any unit may exempt, wholly or in part, any person from the obligation to undergo the annual training prescribed by sub-rule (1).

[20-A. Post-commission training.

- Every officer commissioned in the Territorial Army and appointed to an artillery, signals (non-posts and telegraphs) or infantry unit thereof shall be liable, for the purpose of undergoing post-commission training, to be embodied under the orders of the Officer Commanding the Area in which the unit is located for a continuous period not exceeding 75 days, within a period of three years from the date of being commissioned, in addition to the training prescribed by rules 19 and 20"]; and

21.

Voluntary training.

- Every person may be permitted to be embodied, under the orders of the Officer Commanding the Area in which the unit to which he is appointed is located, for such periods of voluntary training as may from time to time be sanctioned by the Central Government in addition to the training prescribed by rules 19 and 20.

21.

-A. Service on the permanent staff.

(a)

Every enrolled person who volunteers with the written consent of his employers, if any, for employment on the permanent staff of a Territorial Army unit, may, if found suitable by the Commanding Officer of the unit, be embodied under the orders of the Officer Commanding the Area in which the unit is located, for such period as he is required to fill a vacancy on the permanent staff of the unit.

(b)

Every officer who volunteers with the written consent of his employer, if any, for employment on the permanent staff of a Territorial Army unit, may, if found suitable, be embodied under the orders of the Director, Territorial Army, for such period as he is required to fill a vacancy on the permanent staff of that unit or of any other unit of the Territorial Army to which he may be transferred with his consent.

22.

Embodiment.

- For the purposes of [clause (a) of rule 19] rule 20, rule 21 and rule 21A a person shall be deemed to be embodied with effect from the date specified for such embodiment in the order issued under the authority of the Officer Commanding the Area in which the unit is located. [or the Director, Territorial Army, as the case may be.]

Part V ? Pay And Allowances

23.

Pay and allowances.

(a)

Every person subject to the Act, shall be entitled to such pay and allowances as are specified in Schedule III -

(i)

For every day of military training completed or duty performed in accordance with paragraph 15 of TA Regulations, provided that no pay and allowances shall be admissible for any days of such training or duty in excess of the number of days for which these rules provided [and for the actual periods of journey to and from their permanent place of residence subject to a maximum of 7 days in all. Pay and allowances during journey will not be admissible to Government servants who draw pay and allowances for such period from Civil estimates.]

Note. - (1) In the case of an urban unit, a day shall consist of 4 hours of actual military drill or instruction, and may be made up of fraction of a day not more than 4 in number.

[Note. - (2) Persons employed in the permanent staff under rule 21-A or embodied for service under rule 33 shall, on transfer from one unit/formation to another, be allowed joining time with pay and allowances as admissible to regular army personnel. Such joining time will not, however, be allowed when persons are posted to embodied units or employed on the permanent staff, from their place of residence and vice versa."]

(ii)

For periods of actual attendance and for such period, not exceeding two days, as is required by the students to reach the School of Army Instruction before the commencement of course, at authorised courses of instruction in Army

Schools with regular units or otherwise, including intervening Sundays and holidays [and for the actual periods no journey not exceeding 7 days in all to and from their permanent place of residence; pay and allowance during the journey period will not be admissible to Government servants who draw pay and allowances for such period from Civil estimates]:

Provided that no such person shall be entitled to any such pay and allowances for any day or days for which he may be absent, except that a member of a provincial unit, who is embodied or called out for training, may be granted casual leave with pay and allowances on Sundays and notified public holidays at the discretion of the Commanding Officer, and a member of provincial or urban unit, who is attending an authorised course of instruction in any Army School, may be granted casual leave with pay and allowances on intervening Sundays and holidays at the discretion of the Commandant of the School.

Note. - 'Periods of journey' will include any period spent on journey from permanent place of residence to parent unit and vice versa.

(iii)

For such period as a person is borne on the establishment of the permanent, administrative or instructional staff of a unit in the Territorial Army [and for the actual periods of journey to and from their permanent place of residence subject to a maximum of 7 days in all. Pay and Allowance for journey period will not, however, be admissible under these rules to Government servants who draw pay and allowances for such periods from Civil estimates.]

[Explanation. - For the purpose of this sub-clause, an officer other than a Junior Commissioned Officer, shall be deemed to be borne on the establishment of the permanent staff of a unit during the period, not exceeding four days, he is taking over charge of an appointment on the said establishment from an officer holding that appointment.]

Note. - Pay and allowances to personnel of the Territorial Army (employed on the permanent administrative or instructional staff or embodied for service otherwise than for training) while under arrest or suspension otherwise than for absence without leave, shall be governed by the terms of clause (b) of Section 90 of the Army Act, 1950.

Any such personnel of the Territorial Army undergoing training shall not be entitled to any pay and allowances while under arrest or suspension.

(b)

Every person subject to the Act shall be entitled to such pay and allowances as are specified in Schedule IV for every day during which he is called out or embodied for military service.

[Note. - Such persons shall also be entitled to pay and allowances for the actual periods of journey to and from their permanent place of residence subject to a maximum of 7 days in all :

Provided that pay and allowances for journey period will not be admissible under these Rules to Government servants who draw pay and allowances for such periods from Civil estimates.]

(c)

Pay of Government servants. - Government servants who are members of the Territorial Army are entitled, when called out or embodied for training, to pay and allowances at the rates admissible for the territorial Army.

In cases where a Department of the Government of India, or its attached and subordinate offices or a State Government may have specially authorised in respect of its own servants who belong to the Territorial Army the payment of the difference, if any, between their civil pay and military pay at the rates above referred to, the extra expenditure involved shall constitute a charge against the ordinary head of expenditure to which the civil pay of the individuals concerned is debitable.

Every Government servant who is a member of the Territorial Army will intimate to his Commanding Officer the designation of the head of the office or department to which he belongs for the time being during the period of his enrolled service. Summons to military training or service of any kind will be issued by the Commanding Officer through the head of the office, with copies to the Controller of Defence Accounts concerned. After payment to the individual of whatever military pay and allowances are due to him, the Controller of Defence Accounts will intimate periodically to the head of the office, in the case of a non-gazetted Government servant, and to the audit officer, in the case of a gazetted officer, what remuneration and for what period has been disbursed to the individual from Defence Estimates.

[Note. - Pay and allowance during journey under these rules shall also be admissible to Government servants from Defence Services Estimates in cases where a subsequent embodiment is in continuation of the previous embodiment under the same or a different Rule and where the officers are required to proceed to their new duty station without reporting to their civil employer.]

Part VI ? Discipline During Training

24.

Application of the Army Act, 1950, to enrolled persons.

(1)

The Army Act, 1950, and the rules and regulations made thereunder in their application to enrolled persons of the Territorial Army '[during training]' shall, subject to the provisions of sub-rule (2), be modified in the manner and to the extent specified in Schedule 11 in the case of males and Schedule II-A in the case of females.

(2)

Enrolled persons not being females who pre serving on the permanent staff of a unit or are undergoing training at the National Defence Academy shall be subject to the said Act and the rules and regulations made thereunder without any modification.

25.

Authority for purpose of section 10.

- The prescribed authority for the purposes of section 10 of the Act shall, in case where the accused in below the rank of a warrant officer, be the Officer Commanding the unit to which the accused belongs, and in the case of a warrant officer, be the Officer Commanding the Sub-Area or equivalent commander in which the accused' s unit is located.

26.

Recovery of fines.

(a)

fine imposed under section 10 of the Act or under clause (b) of rule 30 or sub-clause (v) of clause (a) of rule 31 may be recovered in the following manner, that is to say :-

(i)

By the officer imposing the fine from the pay and allowances and other public money due to the person on whom the fine is imposed;

(ii)

If the officer imposing the fine is unable to recover the same he shall send a certified copy of the order to the District Magistrate or the Chief Presidency Magistrate, as the case may be, having jurisdiction in the area in which the fine has been inflicted, and such Magistrate shall recover the fine in accordance with the provisions of the Code of Criminal Procedure, 1898, as if it had been imposed by him, and shall remit the amount recovered to the officer concerned.

(b)

All fines recovered shall be credited to the Government.

27.

Prescribed officer under section 12.

- The certificate referred to in section 12 of the Act shall be signed by the Commanding Officer of the unit to which the person concerned belongs.

Urban Units

28.

Offences.

- Every enrolled person of an urban unit when undergoing military training without having been embodied for the purpose commits an offence, if he does any of the following acts, namely :-

(a)

when on parade, engaged on any military duty or wearing the uniform of the Territorial Army -

(i)

strikes, or uses or offers violence to, or uses threatening or insubordinate language to, or behaves with contempt to, his superior officer; or

(ii)

Disobeys any standing order of, or lawful command given by, his superior officer; or

(iii)

neglects to obey a general or garrison order made specially applicable to the Territorial Army, by the Officer Commanding the unit to which he belongs; or

(iv)

is in a state intoxication; or

(v)

being a warrant officer or a non-commissioned officer strikes or ill-treats any person subject to the Army Act, 1950, or to the Act, who is his subordinate in rank or position;

(b)

without sufficient cause fails to appear at the place of parade at the time fixed or to attend at any place in his capacity as a member of the Territorial Army, when duly required so to attend, or when on parade, without sufficient cause quits the rank;

(c)

without sufficient cause fails to perform any part of the training which by or under the Act he is required to perform;

(d)

strikes, or uses or offers violence to, any person whether subject to the Army Act, 1950, or to the Act or not, in whose lawful custody he is placed, and whether such person is or is not his superior officer;

(e)

resists an escort whose duty it is to arrest him or detain him in military custody;

(f)

being under arrest or detention or otherwise in lawful military custody escapes or attempts to escape;

(g)

when in charge of any property belonging to the Government, or to a unit of the Territorial Army, dishonestly misappropriates or converts to his own use, or is concerned in such misappropriation or conversion of any such property;

(h)

willfully injures, or by culpable neglect loses or causes injury to, any such property as is mentioned in clause (g);

(i)

willfully ill-treats a horse or other animal used in the public service;

(j)

knowingly furnishes a false return or report of the number or state of men under his command or charge, or of any money, arms or ammunition, clothing, equipment, stores or other public property in his charge;

(k)

through design or culpable neglect, omits to make or send any, return of any matter mentioned in clause (j) which it is his duty to make or send;

(l)

when it is his official duty to make a declaration respecting any matter, makes a declaration respecting such matter which he either knows or believes to be false or does not believe to be true;

(m)

knowingly makes against any person subject to the Army Act, 1950, or to the Act, an accusation which he either knows or believes to be false or does not believe to be true;

(n)

falsely personates any other person at any parade or on any occasion when such other person is required by or under the Act to do any act or attend at any place; or abets any such act of personation.

29.

Disposal of offences.

- An Officer Commanding an urban unit shall, subject to the provisions of section 10 of the Act and after investigation of a charge made against an enrolled person appointed to that unit, or any offence specified in rule 28, deal with the matter in one or other of the following ways, that is to say, he may :-

(a)

dismiss the charge; or

(b)

deal with the case summarily; or

(c)

take steps for bringing the offender to trial by a criminal court; or

(d)

refer the matter to superior authority for instructions and deal with it accordingly.

30.

Summary punishments.

- A Commanding Officer dealing summarily with an offence under rule 28 may inflict punishment according to the following scale, that is to say, he may :-

(a)

order dismissal of the offender, below the rank of a non-commissioned officer from the Territorial Army with or without forfeiture of all or any arrears of pay and allowances and other public money due to him at the time of such dismissal; or

(b)

order the offender to pay a fine not exceeding Rs. 100; or

(c)

order stoppages of pay and allowances until any proved damage or loss occasioned by the offence of which the offender is charged is made good; or

(d)

severely reprimand the offender; or

(e)

reprimand the offender :

Provided that in every case in which the officer proposes to order the offender to pay a fine he shall first ask the offender whether he claims to be tried by a criminal court, and if the offender does so claim, he shall take steps for bringing the offender to trial by a criminal court..

31.

Summary Punishment of Warrant Officer and Non-Commissioned Officer.

- An officer having powers not less than that of Sub-Area or equivalent Commander dealing summarily with an offence under rule 28 may award any of the following punishments :-

(a)

in the case of a Warrant Officer -

(i)

Dismissal.

(ii)

Reduction to a lower grade or place in the list of his rank or to the ranks.

(iii)

Forfeiture of seniority of rank.

(iv)

Severe reprimand or reprimand.

(v)

Fine.

(vi)

Stoppages of pay and allowances until any proved loss or damage occasioned by the offence of which the offender is charged is made good :

Provided that in every case in which the officer proposes to order the offender to pay a fine he shall first ask the offender whether he claims to be tried by criminal court, and if the offender does so claim, he shall take steps for bringing the offender to trial by a criminal court.

(b)

In the case of Non-Commissioned Officer -

(i)

Dismissal.

(ii)

Reduction to a lower class or a lower rank or to the ranks.

(iii)

Forfeiture of seniority of rank.

32.

(a)

Any enrolled person who deems himself wronged by any superior or other officer may complain to the officer under whose command or orders he is serving.

(b)

When the officer complained against is the officer to whom any complaint should, under sub-rule (a) be preferred, the aggrieved person may complain to such officer's next superior officer.

(c)

Every officer receiving such complaint shall inquire into it, and when necessary, refer it to superior authority; provided that a decision by an authority competent to dispose of the matter complained of shall be final.

(d)

Every such complaint shall be preferred through such channels as may from time to time be specified by the appropriate authority.

Part VII ? 33.

Every office and every enrolled person of the Territorial Army shall, by order of the Central Government or by order of such other authority as may be empowered by the Central Government in this behalf, be liable, to be called out to act in support of the civil power or to provide essential guards or to be embodied for the purpose of supporting or supplementing the Regular Army.

[Provided that an officer or an enrolled person who volunteers with the written consent of his employer, if any, for an appointment with the Headquarters for a unit of the Regular Army, may, if found suitable, be embodied with the Headquarters or the unit of the Regular Army, as the case may be, under the orders of the Director, Territorial Army.]

34.

Every officer and every enrolled person when called out or embodied as in rule 33, shall, under the orders of the Commander of the sub-Area in which the unit to which he is attached may for the time being be serving, act in support of the civil power, provide essential guards or support or supplement the Regular Army.

Part VIII ? Reinstatement After Completion of Military Service

35.

Prescribed authority under section 7-A.

- The prescribed authority, referred to in the proviso to sub-section (1) of section 7A, shall, -

(a)

in respect of any area within the presidency town of Bombay, Calcutta or Madras, be the Chief Judge of the Court of Small Causes within the local limits of whose jurisdiction, the person claiming reinstatement was employed immediately before he was required to perform military service under Section 7, and

(b)

in respect of any other area, be the District and Sessions Judge within the limits of whose jurisdiction such person was employed.

36.

Nature of inquiry by prescribed authority.

- Where a reference is made by any party under the proviso to sub-section (1) of section 7A to the authority referred to in rule 35, a copy of such reference shall be served upon the opposite party and the said authority shall decide the matter after giving both the parties a reasonable opportunity of being heard and after making such further inquiry, if any, as it thinks fit.

37.

Prescribed rights under section 7B.

- When any person subject to the Act is required to perform military service under section 7 -

(a)

he may, at his option continue to subscribe to any provident or superannuation fund or other scheme for the benefit of employees maintained in connection with the employment which he relinquished immediately before he was called out, embodied or attached for military service at such rates as were applicable to him under the rules of such fund or scheme;

(b)

the employer by whom such person was employed shall continue to credit such person's account in the fund or scheme with the amount subscribed and the interest on the interest on the amount subscribed and the interest on the amount is such account in accordance with the rules of the fund or scheme; and

(c)

such person may, if the rules of the fund or scheme so permit and in accordance with such rules, withdraw sums from the amount standing at his credit in the fund or scheme; and for the purpose of calculating the amount of contribution or withdrawal admissible, such person's salary shall be deemed to be the salary which he would have received had he not been so called out, embodied or attached.

I

Territorial Army Enrolment Form

Form I

[See Rules 2, 5, 9(a) and 10(a)]

["Note. - Names should be hand-printed Enrolment of No..... Name in the.....Unit Category in which the person desires to be enrolled.....Also enter rank and entry rate of pay, e.g., 'Sepoy (normal Entry Rate)', 'Sepoy (Matric Entry Rate)."]

Questions

to be put before enrolment

Number

1. What

is your name?

1

2. What

is your father's/husband's name and address?

2

2A. (i)

Are you married?

2A (i)

(ii) If

married, how many wives have you got living at present?

2A (ii)

(iii) If

you have more than one wife living, state whether permission of the Government of India to your enrolment has been obtained quoting authority.

2A (iii)

3. [Are

you a citizen of India?

3]

4. What

is your village, Thana/Police Station/Taluk, Tehsil, district and state?

4

5. [What

is your (a) Post Office?

5(a)

(b)

Telegraph Office?

(b)

6. What

is :

(a) Your

nearest Railway station?

6(a)

(b) The distance from Railway station to your home?

(b)].

7. What

is your present trade, profession or occupation? (See note 1 below).

7

8. [What

is your :-

(a) Nationality?

8(a)

(b) Religion?

(b)]

9. Where

are you employed?

9

10. What

are your educational qualifications?

10

11. What

is your age?

11

12. Have

you ever been convicted by a Criminal Court, and if so, in what circumstances, and what was the sentence?

12

13. Do

you now belong to the regular forces, the Reserve or the Indian States Forces or the Nepal State Army?

13

14. Have

you ever served in the regular forces, the Reserve, or the Indian States Forces or the Nepal State Army? If so, state in which, the period of service and the cause of discharge?

114

15. Are

you willing to be enrolled under the Territorial Army Act, 1948?

15

16. In

which unit do you desire to be enrolled?.

16

17. Are

you willing to undergo military training and to perform military service as specified in the Act and to allow no caste usages to interfere with your military duty?

17

Note.-Non-interference

with caste usages will be observed exactly as in the case of the regular force.

18. Are

you willing to serve until discharged as provided in the Act?

18

19. Have

you ever previously applied for enrolment under the Act, and if so, with what result?

19

20. Have

you been dismissed from the Territorial Army?

20

21. Are

you willing to be vaccinated or re-vaccinated?

21

22. Are

you in receipt of any allowance from Government? If so, on what account?

22

Note 1.- In the case of technical personnel a certificate or other documentary evidence of technical proficiency will be required from his employer.

Signature or thumb impression of applicant

Witnessed by

Declaration On Acceptance For Enrolment

I solemnly declare that the answers I have given to the questions in this form are true and that no part of them is false, and that I am willing to fulfil the engagement made.

Signature or thumb impression.....

Certified that the applicant understands and agrees to the conditions of enrolment.

Signature of enrolling officer.....

Date of enrolment

Form II

Form of Oath

I do swear in the name of God that I will bear true faith and allegiance to the Constitution of India as by law established and that I will, as in duty bound, honestly and faithfully serve in the Territorial Army of the Union of India and go wherever ordered by air, land or sea, and that I will observe and obey all commands of the President of the Union of India and the commands of any officer set over me even to the peril of my life.

Form of Affirmation

Ido solemnly affirm that I will bear true faith and allegiance to the Constitution of India as by law established and that I will, as in duty bound, honestly and faithfully serve in the Territorial Army of the Union of India and go wherever ordered by air, land or sea, and that I will observe and obey all commands of the President of the Union of India and the commands of any officer set over me even to the peril of my life.

Signature

Sworn/Duly affirmed before me at this day of 19

Signature of attesting officer

Extension of Territorial Army Service In Lieu of Transfer To The Reserve

(1)

I agree to extend my Territorial Army Service for.....years with liability to transfer to the Reserve until I have completed the total period of service for which I am liable under this enrolment.

Signature

Signed in my presence atthis.....day of19.

Signature of Commanding Officer.....

(2)

I agree to extend my Territorial Army Service for..... years with liability to transfer to the Reserve until I have completed the total period of service for which I am liable under this enrolment.

Signature

Signed in my presence at..... this day of.....19

Signature of Commanding Officer

(3)

I agree to extend my Territorial Army Service for years with liability to transfer to the Reserve until I have completed the total period of service for which I am liable under this enrolment.

Signature.....

Signed in my presence at.....this.....day of.....19.

Signature of Commanding Officer

Transfer To The Reserve

(Name).....was transferred to the Reserve from (date)

.....

Strike out the line which is not applicable :-

{

He was not given the option of extending his Army Service. He was given the option of extending his Army Service but elected not to exercise it.

Signed at..... this day of.....19

Signature of Commanding Officer

Description On Enrolment

(See instructions below)

To be completed by Recruiting Officer

*Date of birth/Apparent age.....years.

(a)

Chest measurement

Minimum inches. Maximum

.....inches. Heightfeet

.....inches. Weight.....pounds.

}

(b)

To be completed by Medical Officer

.....I consider him fit/unfit for the Army. **Category (A, B or C)

Identification marks or Cause of unfitness.

Date

Place..... .

(a)

to be completed by the M.O. of the unit in the case of a recruit enrolled at unit headquarters.

(b)

The measuring tape should be applied evenly but not lightly, its upper edge touching the lower border of the shoulder blades and its lower edge passing just over the nipples, the arms hanging by the sides. The minimum measurement will be taken after the breath has been expelled from the chest and the maximum when the chest is fully expanded. There should be a difference of at least 2 inches between the minimum and maximum measurements.

*Should tally with the age given in one of these certificates:

(i)

Birth Certificate, (ii) High School Examination (or equivalent examination) Certificate, (iii) School Leaving Certificate. If a man is not in possession of any of these certificates, the age shall be assessed by the enrolling officer.

**Insert here A, B, C.

II

(See Rule 24)

Modification of The Army Act, 1950

1. Sections 2, 4 to 8, 13 to 17 and 22 to 24 shall be omitted.

2. In clauses (a) and (b) of section 80, for the words "Twenty-eight days" the words "Ten days" shall be substituted.

3. Subject to the provisions of section 73 of the Army Act, 1950, the punishment awarded for any of the military offences under the said Act, except those under sections 34, 37 and 49 thereof shall not exceed a term of imprisonment for a period of six months.

4. Sections 69, 70, 75, 76, 78, clause (j) of section 80, 98 and 106 shall be omitted.

Modification of Army Rules

1. Chapter II shall be omitted.

2. Chapter III shall be omitted excluding Rules 17 and 18.

3. Rule 183 shall be omitted.

4. In rule 187, sub-rules (1) and (2) shall be omitted and in sub-rule (3) the following item shall be added, namely :-

"(g) Each unit constituted under sub-section (2) of section 3 of the Territorial Army Act, 1948".

5. Rules 189, 190 and 191 shall be omitted.

II-A

(See Rule 24)

Modification of The Army Act, 1950, In So Far As It Is Capable of Application To Females

1. All the sections directed to be omitted in Schedule II shall also be omitted for the purpose of this Schedule.

2. of sections 34 to 68 only clauses (a) and (b) of section 39 and section 63 shall apply and in their application shall be read as follows:

"39. Absence without leave. - Any person subject to this Act who commits any of the following offences, that is to say,

(a)

absents herself without leave;

(b)

without sufficient cause overstays leave granted to her,

shall, on conviction by court-martial, be liable to suffer any one or more of the punishments specified in clauses (e) to (1) of section 71 of the Act.

63.

Violation of good order and discipline.

- Any person subject to this Act who is guilty of an act or omission prejudicial to good order and discipline, shall, on conviction by court-martial, be liable to suffer any one or more of the punishments, specified in clauses (e) to (1) of section 71 of the Act.

3. Clauses (a), (b), (c) and (d) of section 80 shall be omitted.

Modification of Army Rules

1. Chapter II shall be omitted.

2. Chapter III shall be omitted excluding Rules 17 and 18.

3. Rule 183 shall be omitted.

4. In rule 187, sub-rules (1) and (2) shall be omitted and in sub-rule (3) the following item shall be added, namely :-

"(g) Each unit constituted under sub-section (2) of section 3 of the Territorial Army Act, 1948.

5. Rules 189, 190 and 191 shall be omitted.

III

Pay And Allowances Admissible Under Rule 23

I. Officers (other than junior Commissioned Officers) -

(a)

Pay of rank and dearness allowance as may be admissible for corresponding ranks of the Regular Army in accordance with the regulations for the time being in force.

(b)

An allowance of Rs. 5 per day for every day of -

(i)

actual attendance at recruit, annual or voluntary training in camp, provided that a minimum period of three consecutive days at any one time is spent in camp and provided the officers concerned live, mess and sleep in camp;

(ii)

Voluntary training, when such voluntary training consists of attachment to a regular unit or a Territorial Army unit;

(iii)

actual attendance at authorised or local courses of instructions with a regular unit or otherwise.

II. Junior Commissioned Officers, Warrant Officers, Non-Commissioned Officers, Other Ranks and Non-Combatants (Enrolled)

(a)

Pay of rank, appointment, increments of pay, if any and dearness allowance as may be admissible for corresponding ranks of the Regular Army in accordance with the regulations for the time being in force. Pay of rank, appointment, increment of pay include basic pay.

(b)

Good Service Pay.

(c)

Ration allowance when traveling on duty will be admissible as for the Regular Army.

IV

Pay And Allowances Admissible Under Rule 23(B)

The pay and allowance admissible under rule 23(b) will be as for the corresponding ranks of the Regular Army.

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Translation